

TERMS

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AGREEMENT WITH OUR LEGAL TERMS

We are Syntech Solutions AG ("Company," "we," "us," "our").

We operate, as well as any other related products and services that reference or link to these legal terms (the "Terms of Use") (collectively, the "Services").

You can contact us by e-mail at office@syn-tech.ch or by post at Syntech Solutions AG, Rotzbergstrasse 1, 6362 Stansstad, Switzerland.

These Terms of Use constitute a legally binding agreement between you, whether personally or on behalf of an entity ("you"), and Syntech Solutions AG regarding your access to and use of the Services. You agree that by accessing the Services, you have read, understood, and agreed to be bound by all of these Terms of Use. IF YOU DO NOT AGREE TO ALL OF THESE TERMS OF USE, THEN YOU ARE EXPRESSLY PROHIBITED FROM USING THE SERVICES AND YOU MUST IMMEDIATELY CEASE USING THEM.

Any additional terms or documents that may be posted on the Services from time to time are hereby expressly incorporated by reference. We reserve the right, in our sole discretion, to make changes or modifications to these Terms of Use at any time and for any reason. We will notify you of any changes by updating the "Last Updated" date of these Terms of Use, and you waive any right to receive specific notice of any such change. It is your responsibility to review these Terms of Use periodically to stay informed of any updates. You will be subject to the changes in any revised Terms of Use and will be deemed to have been notified and accepted if you continue to use the Services after the date on which such revised Terms of Use are posted.

We recommend that you print a copy of these Terms of Use for your records.

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1. OUR SERVICES

The information provided when using the Services is not intended for distribution to, or use by, any person or entity in any jurisdiction or country where such distribution or use would be contrary to the law or regulations or would subject us to any registration requirement in such jurisdiction or country. Accordingly, those individuals who choose to access the Services from other locations act on their own initiative and are solely responsible for compliance with local laws, if and to the extent applicable.

2. INTELLECTUAL PROPERTY RIGHTS

Our Intellectual Property

We are the owner or the licensee of all intellectual property rights in our Services, including all source code, databases, functionality, software, website designs, audio, video, text, photography, and graphic content in the Services (collectively, "Content"), and the trademarks, service marks, and logos contained therein (the "Marks").

Our content and trademarks are protected by copyright and trademark laws (and various other intellectual property rights and unfair competition laws) and treaties in the United States and worldwide.

The Content and Marks are provided in or through the Services "AS IS" for your personal, non-commercial use or for your internal business purpose.

Your Use of Our Services

In compliance with these Terms of Use, including the "PROHIBITED ACTIVITIES" section below, we grant you a non-exclusive, non-transferable, revocable license to:

- access the Services; and
- download or print a copy of any portion of the Content to which you have properly obtained access.

solely for your personal, non-commercial use or for your internal business purpose.

Except as set forth in this section or elsewhere in our Terms of Service, no part of the Services and no content or trademarks may be copied, reproduced, aggregated, republished, uploaded, posted, publicly displayed, encrypted, translated, transmitted, distributed, sold, licensed, or otherwise exploited for any commercial purpose without our express prior written permission.

If you wish to use the Services, Content, or Trademarks other than as set forth in this section or elsewhere in our Terms of Use, please direct your request to: office@syn-tech.ch. If we ever give you permission to publish, reproduce or publicly display any part of our Services or Content, you must identify us as the owner or licensor of the Services, Content or Trademarks and ensure that a copyright or proprietary notice appears or is visible when publishing, reproducing or displaying our Content. We reserve all rights not expressly granted to you with respect to the Services, Content, and Trademarks. Any infringement of these intellectual property rights constitutes a material breach of our Terms of Service, and your right to use our Services will terminate immediately.

Your submissions

Please review this section and the "PROHIBITED ACTIVITIES" section carefully before using our Services to understand (a) what rights you grant us, and (b) what obligations you have when posting or uploading content through the Services.

Submissions: By sending us directly a question, comment, suggestion, idea, feedback, or other information through the Services ("Submissions"), you agree to assign to us all intellectual property rights in such Submissions. You agree that we own this Submission and are entitled to use and distribute it without restriction for any lawful purpose, commercial or otherwise, without acknowledgment or compensation.

You are responsible for what you post or upload: By sending us submissions through any part of the Services, you confirm that

- that you have read and agreed to our "PROHIBITED ACTIVITIES" and will not post, send, post, upload, or transmit through the Services any Submissions that are illegal, harassing, hateful, harmful, defamatory, obscene, bullying, abusive, discriminatory, threatening to any person or group, sexually explicit, false, inaccurate, deceptive, or misleading;
- waive any moral rights in such Submissions to the fullest extent permitted by applicable law;
- represent that such Submissions originate with you or that you have the necessary rights and licenses to submit such Submissions and that you have full authority to grant us the above rights with respect to your Submissions; and
- warrant and represent that your Submissions do not constitute confidential information.

You are solely responsible for your Submissions and expressly agree to indemnify us for any losses we suffer as a result of your violation of (a) this section, (b) the intellectual property rights of any third party, or (c) any applicable law. 3.

USER REPRESENTATIONS

By using the Services, you represent and warrant that: (1) you have the legal capacity and agree to comply with these Terms of Service; (2) you are not a minor in the jurisdiction in which you reside; (3) you will not access the Services through automated or non-human means, whether through a bot, script, or otherwise; (4) you will not use the Services for any unlawful or unauthorized purpose; and (5) your use of the Services will not violate any applicable law or regulation. If you provide any false, inaccurate, out-of-date, or incomplete information, we have the right to suspend or terminate your account and refuse any and all current or future use of the Services (or any part thereof).

4. PROHIBITED ACTIVITIES

You may not access or use the Services for any purpose other than that for which we provide the Services. The Services may not be used in connection with any commercial endeavor unless expressly endorsed or approved by us.

As a user of the Services, you agree not to:

- Systematically retrieve data or other content from the Services to create or create a collection, compilation, database, or directory without our written permission.
- Deceive, defraud or mislead us and other users, including by attempting to find out sensitive account information such as user passwords.
- Circumvent, disable, or otherwise interfere with security-related features of the Services, including features that prevent or restrict the use or copying of any Content, or enforce restrictions on the use of the Services and/or the Content contained therein.
- Disparage, discredit or otherwise harm us in our eyes, as well as the Services.
- Use any information obtained through the Services to harass, abuse, or harm another person.
- Misuse our support services or submit false reports of abuse or misconduct. • Use the Services in a manner that is contrary to any applicable law or regulation. • Unauthorized framing of the Services

or link to the Services. • upload or transmit (or attempt to upload or transmit any viruses, Trojan horses, or other material), including excessive use of capital letters and spamming (continuous posting of repetitive text), viruses, Trojan horses, or other material that interferes with any party's uninterrupted use and enjoyment of the Services, or interferes with the use, features, functions, operation, or maintenance of the Services; modifies, impairs or interferes. • Participate in an automated system, such as by using scripts to send comments or messages, or by using data mining, robots, or similar data collection and extraction tools. • Delete the copyright notice or other proprietary rights from any content. • Attempt to impersonate another user or person, or use another user's username. • Upload or transmit (or attempt to upload or transmit) any material that acts as a passive or active mechanism for collecting or transmitting information, including, but not

limited to, clear graphic interchange formats ("gifs"), 1x1 pixels, web bugs, cookies, or other similar devices (sometimes referred to as "spyware" or "passive collection mechanisms" or "PCMS"). • interfere with, interfere with, or impose an undue load on the Services or the networks or services connected to the Services. • Harass, annoy, intimidate, or threaten our employees or agents who provide any part of the Services to you. • Attempt to circumvent any measures of the Services that prevent or restrict access to the Services or any part of the Services, or circumvent any measures of the Services that prevent or restrict access to the Services or any part of the Services. • Copy or adapt the software of the Services, including but not limited to Flash, PHP, HTML, JavaScript or other code. • Except as permitted by applicable law, decipher, decompile, disassemble, or reverse reverse the software of the Services that consists of a portion of the Services or otherwise constitutes a part of the Services. • Except as a result of the use of a standard search engine or internet browser, use an automatic system, including, but not limited to, any spider, robot, cheat utility, scraper, or offline reader that accesses the Services, or use or launch an unauthorized script or other software. • Use a purchasing agent or purchasing agent to make purchases on the Services. • Make any unauthorized use of the Services, including collecting usernames and/or email addresses of users by electronic or other means for the purpose of sending unsolicited email or creating user accounts by automated means or under false pretenses. • Use the Services as part of a competition with us or otherwise use the Services and/or the Content for any income-generating endeavor or commercial endeavor.

5. USER-GENERATED CONTRIBUTIONS The Services do not provide users with the ability to submit or post content. However, we may provide you with the opportunity to create, submit, post, display, transmit, perform, publish, distribute, or transmit content and materials, including, but not limited to, text, writing, video, audio, photographs, graphics, comments, suggestions, or personal information or other material (collectively, "Submissions"). Submissions may be viewed by other users of the Services and may be accessible through third-party websites. If you create or make available Submissions, you represent and warrant that:

6. CONTRIBUTION LICENSE You and the Services agree that we may access, store, process, and use the information and personal information you provide, as well as your choices (including settings). By submitting suggestions or other feedback on the Services, you agree that we may use and share such feedback for any purpose without compensation to you. We do not claim any ownership rights in your contributions. You retain full ownership of all of your Submissions and any intellectual property rights or other proprietary rights associated with your Submissions. We are not liable for any statements or representations in your Submissions that are provided by you in any area on the Services. You are solely responsible for your contributions to the Services, and you expressly agree to indemnify us from any responsibility and to refrain from any legal action against us with respect to your contributions.

7. SERVICE ADMINISTRATION We reserve the right, but not the obligation, to: (1) monitor the Services for violations of these Terms of Service; (2) take appropriate legal action against anyone who, in our sole opinion, violates the law or these Terms of Use, including, but not limited to, reporting such user to law enforcement; (3) in your sole discretion and without limitation, deny access to, restrict access, limit availability, or (to the extent technologically feasible) disable any or all of your Submissions; (4) in your sole discretion and without limitation, notice or liability, remove or otherwise disable from the Services any files and content that are excessive in size or impose any burden on our systems in any way; and (5) otherwise administer the Services in a manner that protects our rights and property and facilitates the proper functioning of the Services.

8. TERM AND TERMINATION These Terms of Service will remain in full force and effect for as long as you use the Services. **WITHOUT LIMITING THE VALIDITY OF ANY OTHER PROVISION OF THESE TERMS OF SERVICE, WE RESERVE THE RIGHT, IN OUR SOLE DISCRETION AND WITHOUT PRIOR NOTICE OR LIABILITY, TO DENY ACCESS TO THE SERVICES AND TO DENY USE OF THE SERVICES (INCLUDING BLOCKING CERTAIN IP ADDRESSES) TO ANY PERSON, FOR ANY REASON OR NO REASON, INCLUDING, BUT NOT LIMITED TO, VIOLATION OF REPRESENTATION, WARRANTY OR REPRESENTATION IN THESE TERMS OF USE OR AGAINST ANY APPLICABLE LAW OR REGULATION. WE MAY TERMINATE YOUR USE OF THE SERVICES OR TERMINATE YOUR PARTICIPATION IN THE SERVICES, OR DELETE ANY CONTENT OR INFORMATION THAT YOU HAVE POSTED AT ANY TIME WITHOUT PRIOR WARNING IN OUR SOLE DISCRETION.** If we terminate or suspend your account for any reason, you are prohibited from re-registering and creating a new account under your name, a false or borrowed name, or the name of a third party, even if you could be acting on behalf of a third party. In addition to terminating or suspending your account, we reserve the right to take appropriate legal action, including but not limited to civil, criminal, and injunctive relief.

9. CHANGES AND INTERRUPTIONS We reserve the right to change, adapt or remove the content of the Services at any time or for any reason in our sole discretion without notice. However, there is

no obligation on our part to update any information on our Services. We will not be liable to you or any third party for any modification, price change, interruption or discontinuance of the Services. We cannot guarantee that the Services will be available at all times. There may be hardware, software, or other problems or maintenance related to the Services, which may cause interruptions, delays, or errors. We reserve the right to change, revise, update, suspend, discontinue, or otherwise modify the Services at any time or for any reason in our sole discretion without notice to you. You agree that we will have no liability whatsoever for any loss, damage, or inconvenience caused by your inability to access or use the Services during any downtime or discontinuation. Nothing in these Terms of Use obligates us to maintain and support the Services or to provide any corrections, updates, or releases in connection therewith.

10. APPLICABLE LAW These Terms of Use are governed by the laws of Switzerland. Syntech Solutions AG and you irrevocably agree that the courts located in Zug, Switzerland shall have exclusive jurisdiction to resolve any dispute that may arise in connection with these Terms of Use.

11. DISPUTE RESOLUTION Informal Negotiations In order to expedite and control the resolution and cost of any dispute, controversy or action related to these Terms of Use (each, a "Dispute" and collectively, the "Disputes") initiated by you or us (individually, a "Party" and collectively, the "Parties"), the parties agree to first attempt to resolve any Dispute (except as expressly set forth below). disputes) for at least 30 days before initiating arbitration proceedings. Such informal negotiations begin with written notice from one party to the other. Binding Arbitration Any dispute arising out of or in connection with these Terms of Use, including any question of their existence, validity or termination, shall be referred to and finally settled by the International Commercial Arbitration Court under the European Arbitration Chamber (Belgium, Brussels, Avenue Louise, 146) in accordance with the rules of this IHSG, which shall be deemed to be part of this clause by reference thereto. The number of referees is one. The seat or legal place of arbitration shall be Baar, Switzerland. The language of the procedure is German or English. The applicable law of these Terms of Use is the substantive law of Switzerland. Limitations The parties agree that any arbitration will be limited to the dispute between the parties on an individual basis. To the extent permitted by law, (a) no arbitration will be joined with any other proceeding; (b) there is no right or authority to arbitrate a dispute on a class action basis or to use class action procedures; and (c) there is no right or authority to commence a dispute in a purported representative capacity on behalf of the general public or any other person. Exceptions to Informal Negotiations and Arbitration The parties agree that the following disputes are not subject to the informal negotiation and binding arbitration provisions set forth above: (a) disputes that seek to enforce or protect a party's intellectual property rights or to determine the validity of such rights; (b) disputes relating to or derived from allegations of theft, piracy, invasion of privacy, or unauthorized use; and (c) any request for injunctive relief. If this provision is found to be illegal or unenforceable, neither you nor we will elect to arbitrate any dispute that falls within the scope of this provision that has been found to be illegal or unenforceable, and such dispute will be resolved by a court of competent jurisdiction within the jurisdictions listed above, and the parties agree to: submit to the personal jurisdiction of that court.

12. CORRECTIONS There may be information on the Services that contains typographical errors, inaccuracies, or omissions, including descriptions, pricing, availability, and various other information. We reserve the right to correct any errors, inaccuracies, or omissions, and to change or update the information on the Services at any time without notice.

13. DISCLAIMER THE SERVICES ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS. YOU AGREE THAT YOUR USE OF THE SERVICES IS AT YOUR SOLE RISK. TO THE FULLEST EXTENT PERMITTED BY LAW, WE DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED, IN CONNECTION WITH THE SERVICES AND THEIR USE, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. WE MAKE NO WARRANTIES OR REPRESENTATIONS AS TO THE ACCURACY OR COMPLETENESS OF THE CONTENT OF THE SERVICES OR THE CONTENT OF ANY WEBSITES OR MOBILE APPLICATIONS LINKED TO THE SERVICES, AND WE ASSUME NO LIABILITY OR RESPONSIBILITY FOR (1) ERRORS, ERRORS OR INACCURACIES IN THE CONTENT AND MATERIALS, (2) PERSONAL INJURY OR PROPERTY DAMAGE OF ANY KIND, RESULTING FROM YOUR ACCESS TO AND USE OF THE SERVICES, (3) UNAUTHORIZED ACCESS TO OR USE OF OUR SECURE SERVERS AND/OR ANY PERSONAL INFORMATION AND/OR FINANCIAL INFORMATION STORED THEREIN, (4) INTERRUPTION OR CESSATION OF TRANSMISSION TO OR FROM THE SERVICES, (5) BUGS, VIRUSES, TROJAN HORSES, OR THE LIKE THAT MAY BE TRANSMITTED TO THE SERVICES BY ANY THIRD PARTY; AND/OR (6) ANY ERRORS OR OMISSIONS IN ANY CONTENT AND MATERIAL, AND FOR ANY LOSS OR DAMAGE OF ANY KIND INCURRED AS A RESULT OF THE USE OF ANY CONTENT POSTED, TRANSMITTED, OR OTHERWISE MADE AVAILABLE THROUGH THE SERVICES. WE DO NOT

GUARANTEE, ENDORSE, WARRANT OR ASSUME ANY RESPONSIBILITY FOR ANY PRODUCTS OR SERVICES OFFERED BY THIRD PARTIES THROUGH THE SERVICES OR TAKE NO PARTY TO MONITOR ANY TRANSACTIONS BETWEEN YOU AND THIRD PARTY PROVIDERS OF PRODUCTS OR SERVICES. AS WITH THE PURCHASE OF A PRODUCT OR SERVICE BY ANY MEANS OR IN ANY SETTING, YOU SHOULD USE YOUR BEST JUDGMENT AND EXERCISE CAUTION WHEN NECESSARY.

14. LIMITATIONS OF LIABILITY IN NO EVENT SHALL WE OR OUR DIRECTORS, EMPLOYEES, OR AGENTS BE LIABLE TO YOU OR ANY THIRD PARTY FOR ANY DIRECT, INDIRECT, CONSEQUENTIAL, EXEMPLARY, INCIDENTAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, LOSS OF REVENUE, LOSS OF DATA, OR ANY OTHER DAMAGES ARISING OUT OF THE USE OF THE SERVICES, EVEN IF WE HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. REGARDLESS OF ANYTHING ELSE CONTAINED HEREIN, OUR LIABILITY TO YOU FOR ANY CAUSE AND REGARDLESS OF THE FORM OF ACTION SHALL AT ALL TIMES BE LIMITED TO THE LESSER OF THE AMOUNT YOU HAVE PAID TO US OR 10 SWISS FRANCS. CERTAIN U.S. STATE AND INTERNATIONAL LAWS DO NOT ALLOW LIMITATIONS ON IMPLIED WARRANTIES OR THE EXCLUSION OR LIMITATION OF CERTAIN DAMAGES. IF THESE LAWS APPLY TO YOU, SOME OR ALL OF THE ABOVE DISCLAIMERS OR LIMITATIONS MAY NOT APPLY TO YOU, AND YOU MAY HAVE ADDITIONAL RIGHTS.

15. INDEMNIFICATION You agree to defend, indemnify and hold us, including our subsidiaries, affiliates, and all of our respective officers, agents, partners, and employees, harmless from any loss, damage, liability, or demand, including reasonable attorneys' fees and expenses, made by any third party due to or relating to (1) the use of the Services, (2) any breach of these Terms of Use, (3) a breach of your representations and warranties set forth in these Terms of Use, (4) your violation of the rights of a third party, including but not limited to intellectual property rights, or (5) any manifest harmful conduct toward another user of the Services with whom you have interacted through the Services. Notwithstanding the foregoing, we reserve the right, at your expense, to assume the exclusive defense and control of any matter for which you are required to indemnify us, and you agree to cooperate, at your expense, with our defense against any such claim. We will use reasonable efforts to notify you of any such claim, action, or proceeding subject to this indemnification as soon as we become aware of it.

16. USER DATA We will retain certain data that you transmit to the Services for the purpose of administering the Services and data related to your use of the Services. Although we regularly perform routine backups of data, you are solely responsible for any data that you transmit or that relates to any activity you have conducted using the Services. You agree that we shall have no liability whatsoever to you for any loss or corruption of such data, and you hereby waive any right of action against us arising from any such loss or corruption of such data.

17. ELECTRONIC COMMUNICATIONS, TRANSACTIONS, AND SIGNATURES Visiting the Services, sending emails to us, and filling out online forms constitute electronic communications. You consent to receive electronic communications, and you agree that all agreements, notices, disclosures, and other communications that we provide to you electronically via email and on the Services satisfy any legal requirement that such communication be in writing.

YOU HEREBY CONSENT TO USE ELECTRONIC SIGNATURES, CONTRACTS, ORDERS, AND OTHER RECORDS, AND TO ELECTRONICALLY DELIVER NOTICES, POLICIES, AND RECORDS OF TRANSACTIONS INITIATED OR COMPLETED BY US OR THROUGH THE SERVICES. You hereby waive any rights or requirements under any statute, ordinance, rule, ordinance, or other law in any jurisdiction that requires a handwritten signature, service, or retention of non-electronic records, or provides for payment or the granting of credits by any means other than electronic.

18. MISCELLANEOUS These Terms of Service and any policies or operating rules posted by us on the Services constitute the entire agreement and understanding between you and us. Our failure to exercise or enforce any right or provision of these Terms of Use shall not constitute a waiver of such right or provision. These Terms of Use apply to the extent permitted by applicable law. We may transfer all or part of our rights and obligations to others at any time. We will not be liable for any loss, damage, delay or failure to perform caused by causes beyond our reasonable control. If any provision or part of a provision of these Terms of Use is determined to be illegal, invalid or unenforceable, that provision or part of the provision shall be deemed severable from these Terms of Use and shall not affect the validity and enforceability of the remaining provisions. There is no joint venture, partnership, employment, or agency relationship between you and us as a result of these Terms of Use or use of the Services. You agree that these Terms of Use will not be construed against us because we drafted them. You hereby waive any rights or requirements arising from the electronic form of these Terms of Use and the absence of a signature by the parties to sign these Terms of Use.

19. CONTACT To resolve a complaint in connection with the Services or to obtain further information on the use of the Services, please contact us at: Syntech Solutions AG, Rotzbergstrasse 1, 6362 Stansstad, office@syn-tech.ch Phone: +41 76 573 24 07.

